

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
May 21, 2026

#	Case Name	Tentative
2.	<u>30-2025-01506069-CU-PA-NJC</u> Jee vs. Stanbury	Before the Court is a Motion for Discovery Sanctions (ROA 47). On March 18, 2026, Plaintiff Anthony Jee (“Plaintiff”) filed a Motion to Quash Subpoena directed to Defendant Gretchen Lawrence Stanbury (“Defendant”). ROA 39. On March 19, 2026, Defendant filed Motion for Monetary Sanctions against Plaintiff and Injury Law Center. ROA 47. On May 5, 2026, after further meet and confer efforts, Plaintiff withdrew Motion to Quash Subpoena and Defendant agreed to withdraw the subject subpoenas. ROA 65. Only the Motion for Discovery Sanctions is now pending. ROA 47. Defendant requests that the Court impose sanctions in the amount of \$4,500 pursuant to California Code of Civil

	Procedure Sections 2023.030(a) and 2023.010(h) for Plaintiff's alleged misuse of the discovery process. ROA 47. I. Motion for Sanctions California Code of Civil Procedure Section 2023.030 provides that "[t]he [C]ourt <i>may</i> impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." Cal. Civ. Proc. Code § 2023.030(a)(emphasis added). One example of misuse of the discovery process involves making or opposing unsuccessfully and without substantial justification, a motion to compel or limit discovery. Cal. Civ. Proc. Code § 2023.030(h). The Court finds that Plaintiff acted with substantial justification in bringing the Motion to Quash because the motion sought to limit what Plaintiff reasonably believed to be an invasion of privacy. Further, the parties ultimately resolved the dispute informally through additional meet and confer efforts, with Plaintiff withdrawing the Motion to Quash and Defendant agreeing to withdraw the subpoenas. ROA 65. Under these circumstances, the imposition of sanctions would be unjust. Accordingly, Defendant's Motion for Discovery Sanctions is DENIED. ROA 47. The Court declines to impose sanctions on Plaintiff. Plaintiff to give notice.
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3.	<u>30-2023-01355015-CU-BC-CJC</u> Consolidated Electrical Distributors, Inc. vs. Levion Construction, LLC	Plaintiff Consolidated Electrical Distributors, Inc., dba Greentech Renewables, moves for an order to enforce the written settlement agreement between it and defendants Levion Construction, LLC, Christian Macias, and Zachary Winger and enter a joint and severable judgment in its favor against them. Plaintiff also seeks an award of attorneys' fees and costs incurred in connection with this motion. A review of the Register of Actions for this case shows that it does not include any proofs of service for the summons and complaint on the defendants. Nor does it show any pleadings responding to the complaint filed by them. Defendants did, however, sign the settlement agreement that plaintiff included with the motion. According to the proof of service filed with the moving papers, plaintiff served copies of those papers on the defendants by mail and email. However, there is no explanation as to where the addresses and email addresses came from, and the settlement agreement does not appear to have any section regarding where notices to the defendants are to be given or otherwise setting forth their addresses. Thus, plaintiff's counsel should be prepared to address issues regarding service to ensure due process was given. Assuming plaintiff can show service was proper, Code of Civil Procedure section 664.6 provides as follows in subdivision (a): If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. Plaintiff has shown that the parties entered into a written
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